



Vision

"To be a global leader in promoting good corporate governance"

Motto

सत्यं वद। धर्मं चर। इष्टार्थे क्लेशं त्यजेत्।

Mission

"To develop high calibre professionals facilitating good corporate governance"

Monday, April 21, 2025

Info Capsule

President

CS Dhananjay Shukla

Vice President

CS Pawan G Chandak

❖ ICSI

World looking at India for professionals: Union Minister G Kishan Reddy (April 21, 2025)

Union Coal Minister and Telangana BJP President G. Kishan Reddy has said that the world is looking at India for professionals. He said developing intellectual and professional skills is not only personal development but also a contribution to the development of society as well as the world. Addressing the gathering after laying the foundation stone for the new building of the Institute of Company Secretaries of India (ICSI) Hyderabad Chapter on 20.04.2025, he said Company Secretaries played a key role in shaping the corporate sector of the country. He said these company secretaries have become the backbone of the country's corporate governance by ensuring that corporate companies adhere to values and follow laws transparently. He also said they are playing a key role in the growth of the country by ensuring that corporate affairs are properly managed and by maintaining the integrity of companies.

For details:

<https://www.newsonair.gov.in/world-looking-at-india-for-professionals->

❖ International Financial Services Centres Authority

• IFSCA (KYC Registration Agency) Regulations, 2025 (April 17, 2025)

IFSCA in its 23rd meeting held on March 26, 2025 approved the IFSCA (KYC Registration Agency) Regulations, 2025. In line with this, IFSCA has notified the IFSCA (KYC Registration Agency) Regulations, 2025 vide gazette notification dated April 11, 2025 to register and regulate the KRAs in IFSC.

These Regulations, inter-alia, provide the Eligibility requirement for a KRA to be registered with IFSCA; Registration requirements including net worth for a KRA; Qualification and Experience for a KRA; Functions and Obligations of a KRA; Functions and Obligations of a Regulated Entity in IFSC; Code of Conduct to be followed by a KRA. While it shall be mandatory for all the IFSCA regulated entities to upload the KYC records of their clients to the KRA, the regulations empower the Authority to exempt certain classes of regulated entities from applicability of these regulations. The KRA in IFSC shall lead to smooth onboarding of clients/customers by Regulated Entities and enhance their efficiency with respect to Customer Due-Diligence (CDD).

For details: <https://ifsc.gov.in/Legal/Index?MIId=lipm%20p19NIU=>

• IFSCA (Capital Market Intermediaries) Regulations, 2025 (April 17, 2025)

IFSCA in its 23rd meeting held on March 26, 2025 approved the IFSCA (Capital Market Intermediaries) Regulations, 2025. In line with this, IFSCA has notified the IFSCA (Capital Market Intermediaries) Regulations, 2025 vide gazette notification dated April 11, 2025 repealing the IFSCA (Capital Market Intermediaries), 2021. The new Regulations provide the revised regulatory framework for registration, regulation and supervision of capital market intermediaries set up in the IFSC, based on experience gained, stakeholder consultation and benchmarking with global standards.

The New CMI Regulations will facilitate intermediation of financial services in a more regulated manner consistent with the three core objectives of securities regulation by IOSCO i.e. (a) Protecting the interests of investors; (b) Ensuring that markets are fair, efficient and transparent; and (c) Reduction of systemic risk, to the extent applicable on the intermediaries in the IFSC. The New Regulations are aimed at enhancing the substance requirements in the IFSC by specifying detailed norms and requirements for appointment of Principal Officer and Compliance Officer by the capital market intermediaries in the IFSC.

For details: <https://ifsc.gov.in/Legal/Index?MIId=3K4wB1w7wfQ=>

❖ **ESG Update****Whirlpool Corporation: Launched a More Sustainable Washing Option**

Whirlpool launched a new *Consul* washer lineup in Brazil, representing the latest in sustainable washer innovations. These *Consul* models boast features that reduce the environmental footprint, such as:

- Eco Mode which can save up to 15% of water and up to 25% of electricity.
- Water reuse, which allows consumers to reuse water for other uses in their home.
- Water level indicators to use the correct level of water, and
- Measured dosage, which helps identify the ideal amount of laundry powder required for each wash.

For details: <https://sr.whirlpoolcorp.com/our-products/sustainable-products.php>

❖ **Public Comments Invited by Regulators****Consultation Paper on investment by Mutual Funds in Real Estate Investment Trusts (REITs) and Infrastructure Investment Trusts (InvITs) (April 17, 2025)**

SEBI has placed this consultation paper with the objective to solicit comments on the proposal to enhance limits for investments by Mutual Funds in REITs and InvITs, thereby providing more investment avenues and further diversification to schemes of Mutual Funds. The proposal is also expected to increase the capital inflow into these instruments, broadening their market base and liquidity. Public comments or suggestions are invited on the proposals as mentioned in this consultation paper and should be submitted by May 11, 2025.

For details: https://www.sebi.gov.in/reports-and-statistics/reports/apr-2025/consultation-paper-on-investment-by-mutual-funds-in-reits-and-invits_93488.html

❖ **Business & Economy**• **India witnessing transformative change, setting new benchmarks in governance & innovation: PM Modi (April 21, 2025)**

Prime Minister Narendra Modi asserted that India has moved beyond incremental change to witness impactful transformation in the last ten years, as the government is ensuring holistic development in the country. Mr Modi stated this while addressing Civil Servants on the occasion of the 17th Civil Services Day in New Delhi. He added that India is setting new benchmarks in governance, transparency and innovation. He noted that India has undergone transformative changes in the past decade and the country is no longer just focused on growth, but is setting new benchmarks in governance, transparency, and innovation. Talking about the aspirational districts programme, the Prime Minister said that through this initiative, unprecedented changes are being witnessed in key indicators of health, social development and basic infrastructure in different parts of the country.

For details: <https://www.newsonair.gov.in/extraordinary-speed-required-to-fulfill-aspirations-of-youth-farmers-women-pm-modi/>

• **India's forex market doubles in last four years from 32 billion to 60 billion dollars, says RBI Governor (April 20, 2025)**

RBI Governor Sanjay Malhotra has stated that India's forex money markets have doubled in the last 4 years. Addressing the 24th FIMMDA-PDAI (Fixed Income Money Market and Derivatives Association of India) annual conference in Bali today he said India's financial markets have developed into a dynamic and resilient force to fuel economic growth with an almost doubling of the foreign exchange market from 32 billion dollar in 2020 to 60 billion dollar in 2024. Malhotra further stated that the levels of transparency in Indian markets are at par with the best in the world. He pointed out that with recent regulatory reforms, there has been greater product and participant diversity and the onshore and offshore markets have become tightly integrated.

For details: <https://www.newsonair.gov.in/indias-forex-market-doubled-in-last-four-years-from-32-billion-to-60-billion-dollars-rbi-governor/>

❖ **Pronouncement**

17.04.2025	Adavya Projects Pvt. Ltd. V. M/s Vishal Structurals Pvt. Ltd. & Ors.	Supreme Court
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A notice invoking arbitration is mandatory but, non-service of such notice on a person does not preclude his impleadment in the arbitral proceedings

The issues in this appeal were whether the service of notice invoking arbitration under Section 21 of the Arbitration and Conciliation Act, 1996(the Act) on a person and joinder of such person in the application under Section 11 for appointment of arbitrator are prerequisites for an arbitral tribunal to exercise jurisdiction over him, and further, when can an arbitral tribunal implead a person to the arbitration proceedings. In the present case, the arbitral tribunal, while determining its own jurisdiction under Section 16, took the view that service of a Section 21 notice and being made party to the Section 11 application are mandatory requirements for a person/entity to be made party to the arbitral proceedings.

By the impugned order, the Hon'ble High Court has affirmed and upheld this reasoning in exercise of its appellate jurisdiction under Section 37, from which the present appeal arises.

The Hon'ble Supreme courts answered the above-mentioned questions in the following words:

First, while a notice invoking arbitration under Section 21 is mandatory and fulfils various purposes by fixing the date of commencement of arbitral proceedings, non-service of such notice on a person does not preclude his impleadment in the arbitral proceedings. Second, the purpose of an application under Section 11 is simply the constitution of the arbitral tribunal, which is pursuant to a limited and *prima facie* examination by the referral court. The order appointing the arbitrator does not limit the arbitral tribunal's terms of reference or scope of jurisdiction. Third, the arbitral tribunal's jurisdiction over a person/entity is derived from their consent to the arbitration agreement. Hence, the proper inquiry in an application under Section 16 is whether such person is a party to the arbitration agreement. Fourth, in the facts of the present case, an arbitration agreement exists between the appellant and respondent nos. 2 and 3, and hence they can be impleaded as parties to the arbitral proceedings.

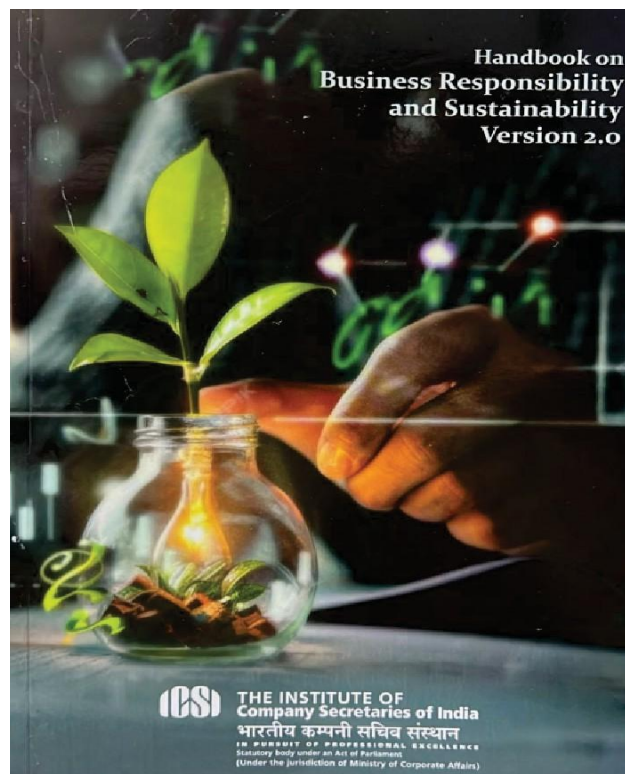
For details: https://api.sci.gov.in/supremecourt/2024/45960/45960_2024_11_1501_60992_Judgement_17-Apr-2025.pdf

Market Watch

Stock Market Indices as on 21.04.2025	
S & P BSE Sensex	79408.50(+1.09%)
Nifty 50	24125.55(+1.15%)

Foreign Exchange Rates as on 21.04.2025 (https://m.rbi.org.in/scripts/ReferenceRateArchive.aspx)			
INR / 1 USD	INR / 1 EUR	INR / 1 GBP	INR/ 1 JPY
85.16	98.02	113.94	.60

HANDBOOK ON BUSINESS RESPONSIBILITY AND SUSTAINABILITY VERSION 2.0



About the Book

The ICSI launched the “Handbook on Business Responsibility and Sustainability” to promote the integration of ESG practices in business and recognize corporate sustainability efforts. With BRSR reporting becoming mandatory for FY 2022-23, the Institute published this guide in 2023 for corporations and professionals.

Building on this initiative, the ICSI has released the second edition, ‘Handbook on Business Responsibility and Sustainability Version 2.0’, reflecting best practices from companies participating in the second edition of the Awards.

Year of Publication: 2024

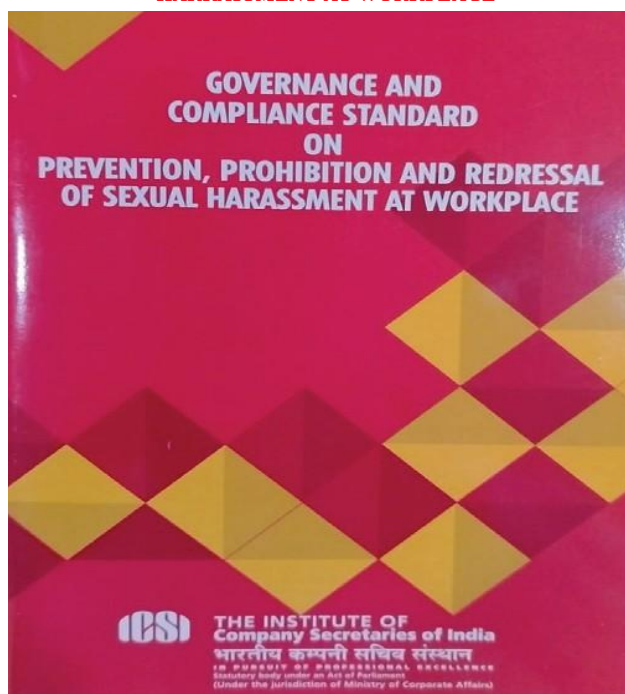
Price: Rs. 1000/-



For Subscription:

<https://smash.icsi.edu/Scripts/ECart/Default/ItemWiseECartSearchOnlineBooks.aspx?ItemId=345>

GOVERNANCE AND COMPLIANCE STANDARD ON PREVENTION, PROHIBITION AND REDRESSAL OF SEXUAL HARASSMENT AT WORKPLACE



About the Book

This Standard aims to enhance the implementation of the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 (“PoSH Act”), by harmonizing workplace practices.

It provides standardized procedures for Internal Committee meetings, complaint and inquiry processes, and training/ capacity building programs for employees/ Internal Committee members. The Standard also offers guidance on drafting gender-neutral PoSH policy, promoting inclusivity.

Year of Publication: 2024

Price: Rs 90/-



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